



CHAUDHRY ARRIVES AT THE SUPREME COURT AFTER BEING REAPPOINTED AS THE CHIEF JUSTICE

hasty action on these matters are severe and the establishment would not look too kindly on further instability. President Asif Zardari—still smarting from having to climb down over the ‘restoration’ issue—is also likely to resist. Chaudhry himself cannot count on the loyalty of most of his fellow judges in the expanded sc.

The writ of the courts has also been challenged in places such as Malakand Division in the Frontier Province, where the Government’s ‘peace deal’ with local militants has, in effect, brought in a parallel judicial system despite claims to the contrary.

Chaudhry must also walk a fine line to keep the support of government agencies that serve as the enforcers of the court’s rulings. He was previously accused of “arrogance” and “humiliating public servants” and judicial officers by Musharraf as well as some

chief justice. As news broke of his reinstatement early on March 16, hundreds of people gathered outside his house to express their support. One of these people, when asked by a television crew why he was present, said that Chaudhry would help reduce the price of petrol. Many others are looking to him to immediately begin hearing cases questioning the National Reconciliation Ordinance, of which Zardari was a prominent beneficiary, prosecute Musharraf for treason and haul up the country’s intelligence agencies over missing persons—all cases he was hearing when he was removed. Although indications are that he will steer clear of such politically explosive issues at least in the near future—some say because of a secret deal—the potential for quick public disillusionment is very real.

Unfortunately, the lawyers’ movement, their political supporters such as Jamaat-e-Islami chief Qazi Hussain and Imran Khan, and Chaudhry him-

WITH HALF OF THE SUPREME COURT JUDGES APPOINTED by General Musharraf under the amended Constitution, Chaudhry will have to walk a thin line on judicial reforms.

24 judges against a sanctioned strength of 29. Of these, 13 judges are those who took oath under the pco, while three other such judges retired recently. Further recent appointments in the country’s high courts have been criticised by the Government’s critics as an attempt to “pack the courts” with biased judges. Questions are also being raised about the validity of rulings by these judges since the restoration also implies that Musharraf’s actions on November 3 and later appointments were illegal.

On Chaudhry’s first day back at work, a constitutional petition was, in fact, submitted to the sc registrar, asking for the new appointments to be reversed and for the “pco judges”—a term coined by judicial activists—to be thrown out for acceding to a violation of the Constitution. But the legal and political complications of any

lawyers. Even his most ardent political supporters—Nawaz Sharif’s Pakistan Muslim League (N) activists—privately call him a “loose cannon”.

The vast backlog of pending cases—which Chaudhry did diligently work to reduce by almost half before his removal—also poses a serious question. The PPP and PML(N) have pledged to implement the Charter of Democracy, signed between Sharif and Benazir Bhutto in 2006, which calls for sweeping judicial reforms. The chief justice himself acknowledged the problems faced by common people in the courts. “There is rampant corruption in this institution,” he told lawyers on March 24. “I will request all of you, being officers of this court, to put your house in order first.”

But most troubling of all, perhaps are the sky-high and sometimes unrealistic expectations attached to the

self are partly to blame for such high hopes, having cultivated precisely that image during their protests. In one speech in 2008, for example, the deposed chief justice had claimed that the 30 per cent devaluation in the value of the rupee would not have occurred had he still been in office.

During his earlier tenure, Chaudhry had irked Musharraf and his government by his penchant of taking suo moto notice of issues they considered firmly in the executive domain. His supporters are looking to him to resume precisely that kind of judicial activism but by doing so he may be opening himself up to the accusation already levelled by many within the PPP, that he has become too politicised to serve as an impartial judge. Chaudhry’s tenure lasts till the end of 2013. It’s a long, winding road and nobody envies him. ■